

IN THE MAGISTRATE COURT OF Fulton COUNTY, GEORGIA

Peach State Properties, LLC

Plaintiff,

vs.

John Doe

Defendant.

Case No.:

24D0012345

## DEFENDANT'S MOTION FOR CONTINUANCE

COMES NOW, John Doe, Defendant in the above-styled matter, and respectfully moves this Court for a continuance of the hearing currently scheduled in this eviction proceeding, and in support thereof states as follows:

1. The Defendant is John Doe, residing at 857 Peachtree Street NE, Atlanta, GA, 30309. The Defendant is the tenant in an eviction action brought by Plaintiff Peach State Properties, LLC.

2. A hearing in this matter is currently scheduled for the following date and time:

Hearing date:

05/24/2024

Hearing time:

9:30 AM

3. The Defendant respectfully requests a continuance of the scheduled hearing for the following reasons: I need additional time to obtain repair receipts and bank statements for the hearing.

4. The Defendant needs additional time to: (check all that apply)

- ☐ Secure legal representation or consult with an attorney
- ☒ Gather necessary documents and evidence to present to the Court
- ☒ Arrange for funds to pay the amount owed or negotiate a payment arrangement
- ☐ Address personal or family circumstances that prevent readiness for the hearing

☐ Other:

5. The Defendant is not seeking this continuance for purposes of delay or to prejudice the Plaintiff, but rather to ensure adequate time to prepare a proper response and defense to the eviction action and to address the circumstances giving rise to this matter.

6. The Defendant respectfully requests that this Court grant a continuance of 30 days from the current hearing date, or to such other date as the Court deems appropriate:

Number of days requested:

30

7. The Defendant has attempted to notify the Plaintiff or Plaintiff's counsel of this motion by (email, mail, or hand delivery):

Delivery method:

U.S. Mail and Email

Date:

10/03/2026

The Plaintiff's position on this motion is:

☐ Consents      ☐ Does not oppose      ☐ Opposes      ☒ Unknown

WHEREFORE, Defendant John Doe respectfully requests that this Honorable Court grant this Motion for Continuance and reschedule the hearing in this matter to a later date, and for such other and further relief as this Court deems just and proper.

Respectfully submitted this 3rd day of October, 2026.

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|----------|---------------------------------------------|
| Name:    | John Doe                                    |
| Address: | 857 Peachtree Street NE, Atlanta, GA, 30309 |
| Phone:   | (404) 555-0167                              |
| Email:   | john.doe.ga@example.com                     |

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true and correct copy of the foregoing Motion for Continuance was delivered to Peach State Properties, LLC at 3344 Piedmont Road NE, Atlanta, GA 30305 on this 3rd day of October, 2026. Served by:

☐ Hand Delivery      ☒ U.S. Mail      ☒ Email